

	25-1491358	
6.	Hanson v. FCA US LLC 25-1465366	(Withdrawn)
7.	Henley v. Universal Protective Service, LP 25-1532290	The motion to compel arbitration of the claims of plaintiff Michael Henley (Plaintiff) filed by defendant Universal Protection Service, LP (Universal) is GRANTED as to the claims asserted against Universal. The motion is brought under both the Federal Arbitration Act ("FAA") and the California Arbitration Act ("CAA"). Both the FAA and the CAA require the existence of a valid arbitration agreement before arbitration can be compelled. (See 9 U.S.C. § 2 and <i>Code Civ. Proc.</i>, § 1281.2.) Here, Universal met its initial burden by attaching to its motion a copy of the purported arbitration agreement bearing Plaintiff's electronic signature. Plaintiff's declaration stating he did not recall electronically signing any arbitration agreement is sufficient to challenge the authenticity of the Arbitration Agreement. (See <i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165-166 and <i>Ruiz v. Moss Bros. Auto Group, Inc.</i> (2014) 232 Cal.App.4th 836, 846.) The burden thus shifted to Universal to establish by a preponderance of the evidence that the signature was an act of Plaintiff. Universal met this burden. Universal relies on the declaration of its Director of Human Resources, Harlin Bhangoo. Mr. Bhangoo explains in detail the process for electronic review and signature for Universal's Arbitration Agreement. (See Bhangoo Decl. ¶¶ 8-12.) Mr. Bhangoo further states he reviewed electronic onboarding records pertaining to Plaintiff and the information he reviewed was entered into and stored in Universal's iCIMS system in the ordinary course of business at the time the Plaintiff completed the onboarding process in December 2023. (Bhangoo Decl. ¶ 14.) Mr. Bhangoo also states based on his review of Plaintiff's iCIMS employee account, Plaintiff successfully completed the onboarding process through iCIMS on December 12, 2023, "[d]uring which time, Plaintiff was presented with California Arbitration Agreement, and he expressly accepted the terms of the Agreement by signing it on December 12, 2023, at 5:44 p.m." (See Bhangoo Decl. ¶ 15.) Plaintiff argues the evidence shows a lack of security measures because Mr. Bhangoo admits that in addition to Plaintiff, "a select group of authorized Human Resources personnel who work for Universal" have access to Plaintiff's online account. (Bhangoo Decl. ¶ 10b.) However, Mr. Bhangoo also attests that "[t]hose employees only have the ability to view and print completed onboarding documents in read-only mode." (<i>Ibid.</i>) Mr. Bhangoo further declares only the potential employee "using his or her correct username and unique password may electronically access and sign onboarding documents with his or her electronic signature, including the Agreement." (Bhangoo Decl. ¶ 10d.) Mr. Bhangoo also attests that he "reviewed Plaintiff's Arbitration Agreement and there were no revisions or

		changes to Plaintiff's Arbitration Agreement at any point in time by anyone after Plaintiff executed the Arbitration Agreement on December 12, 2023." (Bhangoo Decl. ¶ 17.) The statements in the Bhangoo declaration detailing the steps the potential employee would have to take to electronically review and sign the Arbitration Agreement, as well as the security precautions concerning creation and use of the employee's username and password, are sufficient to establish that the electronic signature on the Arbitration Agreement is an act of Plaintiff. (See <i>Civ. Code</i> § 1633.9; <i>Ruiz, supra</i>, 232 Cal.App.4th at 843-844; <i>Espejo v. S. California Permanente Med. Grp.</i> (2016) 246 Cal.App.4th 1047, 1062.) Based on the foregoing, the motion is GRANTED as to Universal only. The Court notes Universal contends the Arbitration Agreement applies to defendant Adriana Ramirez as well, as an employee of Universal, and Ms. Ramirez is entitled to compel arbitration of Plaintiff's claims against her. However, Ms. Ramirez did not join in this motion, has not appeared in this matter, and appears to have not yet been served with the complaint. In addition, no evidence is offered showing Ms. Ramirez has made any demand for arbitration to Plaintiff. This matter is STAYED as to Universal only. Plaintiff's evidentiary objections are OVERRULED. <i>Counsel for Universal is to give notice of this ruling.</i>
8.	Wong v. SBS Trust Deed Network 23-1343409	Before the court is a motion for reconsideration of the Court's March 19, 2026 order filed by defendant Mitchell Willet (Defendant or Willet). As set forth below, the motion is DENIED. A motion for reconsideration must be "based upon new or different facts, circumstances, or law" than those before the court at the time of the original ruling. (<i>Code of Civ. Proc.</i> § 1008, <i>subd. (a).</i>) In addition, a party seeking reconsideration of a prior order based on "new or different facts, circumstances or law" must provide a satisfactory explanation for failing to present the information at the first hearing, i.e., a showing of reasonable diligence. (<i>Garcia v. Hejmadi</i> (1997) 58 Cal.App.4th 674, 690; <i>California Correctional Peace Officers Ass'n v. Virga</i> (2010) 181 Cal.App.4th 30, 47.) Here, Defendant fails to identify any new or different facts, circumstances or law than those before the Court at the time of the 03/19/26 order denying Willet's motion to set aside the default judgment. (ROA 126.) While Willet cites to the supplemental declaration, it was filed prior to the hearing. (ROA 125.) In fact, at the hearing, the Court specifically addressed the late-filed declaration and declined to consider it. (ROA 126.) The Court also finds Willet failed to adequately explain why the supplemental declaration and supporting evidence were not submitted with the original motion.